

Court No. - 32

Case :- WRIT - C No. - 51751 of 2015

Petitioner :- Pooja Gupta

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Shailendra Garg

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Rakesh Tiwari,J.

Hon'ble Mukhtar Ahmad,J.

Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of corporation is to obtain instruction in the matter.

As prayed, list this matter on 16th September, 2015.

Order Date :- 10.9.2015

M.A.Ansari

Court No. - 41

Case :- WRIT - C No. - 51751 of 2015

Petitioner :- Pooja Gupta

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Shailendra Garg

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Vikram Nath,J.

Hon'ble Amar Singh Chauhan,J.

Put up tomorrow i.e. 16.3.2016.

Order Date :- 15.3.2016

Puspendra

Court No. - 41

Case :- WRIT - C No. - 51751 of 2015

Petitioner :- Pooja Gupta

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Shailendra Garg

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Vikram Nath,J.

Hon'ble Amar Singh Chauhan,J.

Put up tomorrow i.e. 17.3.2016.

Order Date :- 16.3.2016

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Court No. - 41

Case :- WRIT - C No. - 51751 of 2015

Petitioner :- Pooja Gupta

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Shailendra Garg

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Vikram Nath,J.

Hon'ble Amar Singh Chauhan,J.

Put up tomorrow i.e. 18.03.2016 in the additional cause list.

Order Date :- 17.3.2016

A.K.Verma

Court No. - 41

Case :- WRIT - C No. - 51751 of 2015

Petitioner :- Pooja Gupta

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Shailendra Garg

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Vikram Nath,J.

Hon'ble Amar Singh Chauhan,J.

Put-up on 28th March, 2016 in the additional cause list.

Order Date :- 18.3.2016

SS

Court No. - 21

Case :- WRIT - C No. - 51751 of 2015

Petitioner :- Pooja Gupta

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Shailendra Garg

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble V.K. Shukla,J.

Hon'ble Vivek Kumar Birla,J.

On the matter being taken up today from the side of the petitioner it is being sought to be contended that various amounts in question have been deposited by her but at the point of time when recovery proceedings have been initiated said amount in question has not at all been taken note of and, in view of this, excess amount in question is being sought to be recovered.

The grievance that is being sought to be raised by the petitioner before this Court can be very well looked into, examined and remedied by the Executive Engineer (UPPCL), Dakshinanchal Vidyut Vitran Nigam Ltd., Raniya Kanpur Dehat.

Consequently, in the facts of the case, as disputed question of facts are being raised by the petitioner before this Court, in our considered opinion, we feel it proper that, at the first instance, petitioner should approach the authority concerned for redressal of her grievances, as such, we proceed to pass an order giving liberty to the petitioner to approach the Executive Engineer (UPPCL), Dakshinanchal Vidyut Vitran Nigam Ltd., Raniya Kanpur Dehat and, in case, such a representation is being moved, then the authority concerned keeping in view the provisions, that are contained under U.P. Electricity Supply Code 2005, the grievance of petitioner be looked into, examined and remedied, in accordance with law, preferably within next three months from the date of receipt of representation of petitioner alongwith certified copy of this order.

With these observations/directions, writ petition is ***disposed of***.

Order Date :- 28.3.2016

Shekhar